

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER JEAN PHILLIPS,

Petitioner

VS.

DAVID ERIC PHILLIPS-KERLEY,

Respondent

) Case Number: FDI-23-798937

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT; REQUEST FOR ORDER -
OTHER: DISCHARGE COUNTS 1-19 AND 21-42 OF ORDERS TO SHOW CAUSE; ORDER TO
SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Jennifer Jean Phillips (Wife) and Respondent David Eric Phillips-Kerley (Husband). The parties married on 1/3/1998. Wife contends the parties' date of separation is 3/31/2023, for a marriage of 25 years and 3 months. Husband contends the date of separation is "to be determined."
- 2) On 11/13/2025, Wife filed an Order to Show Cause and Affidavit for Contempt alleging the following counts:

Count 1

July 24, 2024 Order

Failed to serve Preliminary Declaration of Disclosure (Family Code § 2104).

Count 2

July 24, 2024 Order

Failed to file FL-141 proof of service of disclosures with the Court.

Count 3

July 24, 2024 Order

Failed to open required joint community account as ordered.

Count 4

July 24, 2024 Order

Failed to deposit court-ordered funds back into said account.

Count 5

July 24, 2024 Order

Failed to provide Petitioner with access credentials to the account.

Counts 6–10

September 11, 2024 Hearing

Repeated identical violations of Counts 1–5 after court reaffirmed prior orders and extended deadlines.

Counts 11–15

October 9, 2024 Hearing

Continued identical noncompliance following third court directive. Respondent's nonperformance after three separate hearings constitutes fifteen distinct willful violations.

Count 16

September 2024 Hearing

1 Defiance of Freeze Order - At the September 11 2024 hearing, the Court imposed a financial
2 freeze on community accounts pending forensic review. Respondent subsequently transferred and
3 accessed funds in defiance of that order.

4
5 Count 17

6 October 2024 Hearing

7 Defiance of Freeze Order - Despite renewed warnings and continuation of the freeze on October
8 14, 2024, Respondent again accessed and manipulated community accounts, demonstrating
9 ongoing contempt for the Court's authority.

10
11 Count 18

12 Post-Freeze Transfer of \$126,000 Through PayPal

13 In or about September 2025, while the freeze order remained in effect, Respondent moved
14 approximately \$126,000 through PayPal and related electronic platforms to his civilian in 76
15 separate transactions. These deliberate transfers violated the freeze and were intended to conceal
16 community assets.

17
18 Count 19

19 Withdrawal of Deferred Compensation After ATRO

20 In April 2024, after service of the Summons and ATROs, Respondent withdrew over \$29,000
21 from the deferred-compensation account. This constituted a direct violation of Family Code §
22 2040(a)(2) prohibiting transfer or disposal of property without written consent or court
23 authorization.

24
25 Count 20

26 In October 2024 after the service of the Summons and the ATROs, Respondent withdrew 11,000
27 from the deferred-compensation account. This constituted a direct violation of the Family Code §
28 2040(a)(2) prohibiting transfer or disposal of property without written consent or court
29 authorization.

Count 21

Failure to Pay Court-Ordered Forensic Accountant Fees

At the July 24 2024 hearing, the Court ordered Respondent to pay 100% of the cost of a forensic accountant to assist with financial tracing. He has made no payment and has ignored all subsequent directives.

Count 22

Failure to Pay \$10,000 Sanctions

At the same July 24 2024 hearing, Respondent was sanctioned \$10,000 for discovery noncompliance, payable to Petitioner by August 31 2024. He has failed to pay any portion, in open defiance of the Court's order.

- 3) On 4/24/2026, Wife filed a second Order to Show Cause and Affidavit for Contempt alleging the following additional counts:

Count 23

Order: July 24, 2025

Violation: Failed to serve Preliminary Declaration of Disclosure (Family Code §2104).

Count 24

Order: July 24, 2025

Violation: Failed to file FL-141 proof of service of disclosures with the Court.

Count 25

Order: July 24, 2025

Violation: Failed to open required joint community account as ordered.

Count 26

Order: July 24, 2025

1 Violation: Failed to deposit court-ordered funds into the joint account.

2
3 Count 27

4 Order: July 24, 2025

5 Violation: Failed to provide Petitioner with access credentials to the account.

6
7 Count 28

8 Order: July 24, 2025 (reaffirmed by Court)

9 Violation: Continued identical violations of Counts 23–27 after court reaffirmed prior orders and
10 extended deadlines.

11
12 Count 29

13 Order: September 11, 2025 – Freeze Order

14 Violation: Continued defiance of freeze order and continued spending outside normal living
15 expenses.

16
17 Count 30

18 Order: October 9, 2025 – Sanctions Order (\$10,000)

19 Violation: Continued failure to pay court-ordered sanctions.

20
21 Count 31

22 Order: October 9, 2025 – Forensic Accountant Order

23 Violation: Continued failure to pay court-ordered forensic accountant fees.

24
25 Count 32

26 Order: October 9, 2025 – Exclusive Use and Possession Order

27 Violation: Continued refusal to vacate the marital residence as ordered.

28

29

Count 33

Order: July 24, 2025 (reaffirmed January 20, 2026)

Violation: Continued failure to serve Preliminary Declaration of Disclosure.

Count 34

Order: July 24, 2025

Violation: Continued failure to file FL-141 proof of service.

Count 35

Order: July 24, 2025

Violation: Continued failure to open joint account.

Count 36

Order: July 24, 2025

Violation: Continued failure to deposit funds into joint account.

Count 37

Order: July 24, 2025

Violation: Continued failure to provide account access.

Count 38

Order: July 24, 2025 and January 20, 2026 hearings

Violation: Continued willful refusal to comply with all disclosure and joint-account orders despite repeated court directives.

Count 39

Order: September 11, 2025 – Freeze Order

Violation: Continued defiance of freeze order after January 20, 2026 hearing.

Count 40

Order: October 9, 2025 – Sanctions Order

Violation: Sanctions remain unpaid.

Count 41

Order: October 9, 2025 – Forensic Accountant Order

Violation: Continued refusal to pay forensic accountant.

Count 42

Order: October 9, 2025 – Vacate Residence Order

Violation: Continued refusal to vacate marital residence.

- 4) At the prior 5/7/2026 hearing, attorney Don Emley accepted appointment as contempt counsel for Husband.
- 5) On 6/26/2026, Husband's contempt counsel Don Emley filed a Request for Order and Memorandum of Points and Authorities asking the Court to discharge counts 1 – 19 and 21 – 42 on the following grounds:
- a. Several Counts allege violations of purported orders that do not exist, including orders alleged to have been made on: July 24, 2024 (Counts 1–5, 21, 22); September 11, 2024 (Counts 6–10, 16, 18); October 9, 2024 (Counts 11–15); and October 14, 2024 (Count 17).
 - b. Count 19 alleges an April 11, 2024 violation of the Standard Family Law Restraining Orders attached to the Summons (Family Law), which was not served on respondent until April 26, 2024.
 - c. Counts 21, 22, 30, 31, 40, and 41 allege violations of orders to pay debts, which orders are not enforceable through contempt.
 - d. Counts 23–27 and 33–38 allege violations of a July 24, 2025 order that merely continued a hearing and contained no other terms.

- 1 e. Counts 28, 30, 31, and 33–42 allege so-called "continued" violations of orders which
2 petitioner claimed respondent violated earlier in her Orders to Show Cause. Mr. Emley
3 cites the following language from *Kohler v. Super Ct.* (2010) 181 Cal.App.4th 1153,
4 1169 ("it was improper to impose multiple punishments for what was basically a single
5 disobedience, although continuing in nature.... The test is whether there are "separate
6 insults to the authority of the court, not whether the insults happened to occur on the
7 same or different days.")
- 8 f. Count 29 alleges a violation of an order that is too vague to be enforceable through
9 contempt. Mr. Emley states, "in Count [2]9, petitioner asks the Court to hold respondent
10 in contempt for alleged acts which she claims violated the following term of the order
11 entered following the September 11, 2025 hearing: 'Wife's request to freeze the parties'
12 bank accounts is GRANTED. Husband is immediately restricted from withdrawing any
13 funds from the accounts identified by Wife in her pleadings.' This term does not contain
14 clear requirements that are stated within the four corners of the order. Anyone attempting
15 to comply with this order would need to review additional unspecified documents to
16 know what to do. '[T]he accounts identified by Wife in her pleadings,' are not
17 identifiable on the face of the order. Nor are the pleadings in which Wife is stated to have
18 identified the accounts which are subject to restriction. The ambiguity is too great to
19 create a clear obligation directing the performance of a specified act so as to create
20 liability for contempt. (See *Little*, supra, 260 Cal.App.2d at p. 316.)"
- 21 g. Counts 32 and 42 fail to state facts constituting contempt. Mr. Emley states, "Petitioner
22 does not elaborate on these conclusory charges anywhere in her April 24, 2026 Order to
23 Show Cause and Affidavit for Contempt, including 'Attachment 8C – Statement of Facts
24 Supporting Contempt,' 'Attachment 8D – Other Material Facts Showing Willful
25 Violations Filed in Support of Petitioner's FL-410 Order to Show Cause and Affidavit for
26 Contempt,' 'Declaration in Support of Contempt Sanctions,' or elsewhere in the filing.
27 The charges do not appear at all in petitioner's November 13, 2025 Order to Show Cause
28 and Affidavit for Contempt. Petitioner sets forth no facts as to the particular conduct she
29 alleges respondent engaged in that causes her to complain of his '[c]ontinued refusal to

1 vacate the marital residence.’ Without notice of the exact nature of the charges against
2 him, respondent is unable to prepare his defense. (See Liu, supra, 273 Cal.App.2d at p.
3 141. Code of Civil Procedure §1211.5(b) provides that the Court may order or permit the
4 accusing party to amend the affidavit to correct any defect or insufficiency. Respondent
5 respectfully asks the Court not to exercise that discretion here. Petitioner's April 24, 2026
6 Order to Show Cause is already her second request to hold respondent in contempt. She
7 included (and repeated) dozens of Counts that fail as a matter of law, including purported
8 ‘violations’ of a July 2025 order that she has been informed on numerous occasions was
9 simply a continuance of a hearing. From a brief review of the Register of Actions, it
10 seems clear this case could well do with less litigation, not more.”

11 6) On 7/1/2026, Wife filed a Responsive Declaration. Wife asks the Court to: (a) deny Husband’s
12 request to dismiss the contempt counts prior to arraignment; (b) proceed with arraignment on all
13 42 counts; (c) set any motion to dismiss individual counts for a separate, properly noticed hearing
14 at which she has had an adequate opportunity to prepare and respond; (d) take into account, in
15 connection with any such future motion, Husband’s continued failure to comply with disclosure
16 obligations or any other court order as of the date of that hearing; and (e) address Wife’s right to
17 counsel under Family Code 2030 before proceeding with any substantive hearing that would
18 benefit Husband, including any motion to dismiss contempt counts.

19 7) On 8/18/2026, Husband’s contempt counsel Mr. Emley filed a Reply Declaration reiterating his
20 previously stated requests and noting that Wife did not substantively respond to the grounds
21 supporting Husband’s request to discharge the various contempt counts.

22 **B. Findings and Order**

23 1) On 7/15/2026, Wife filed a Request for Order seeking (among other remedies) an attorney’s fee
24 award under Family Code section 2030. That Request for Order is set to be heard on 10/6/2026.
25 The Court finds good cause to grant Wife’s request for a continuance of the hearing on Husband’s
26 request to discharge various contempt counts until the Court has adjudicated her Family Code
27 section 2030 request. The hearing on Husband’s request to discharge contempt counts, as well as
28 the arraignment of Husband, is hereby continued to **Thursday, 12/3/2026 at 9:00 AM in Dept.**
29 **404.**

2) The Court will prepare the Findings and Order After Hearing.